

Deepak Kumar Bansal v. State of U.P.

Allahabad High Court · Division Bench · 10 December 2014 · WRIT - C No. 66833 of 2014 · **Writ disposed; dual-bill dispute relegated to Clause 6.5.**

HEADNOTE

Where a consumer received two electricity bills for the same month in different amounts, the High Court declined to examine the discrepancy on the writ and directed him to file an appropriate application under Clause 6.5 of the Electricity Supply Code, 2005, to be decided by a reasoned speaking order within four weeks.

FACTUAL SUMMARY

Deepak Kumar Bansal approached the Allahabad High Court after receiving two electricity bills for the same month, each showing a different amount. He sought writ relief against the State of Uttar Pradesh and the distribution licensee. Counsel for both sides were heard. Without examining which bill was correct, the Division Bench treated the discrepancy as a matter for the statutory billing-objection route and disposed of the writ on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

dual-bills-same-month

HOLDING

A consumer who receives two bills for the same month in different amounts must first file an appropriate application under Clause 6.5 of the Electricity Supply Code, 2005; the writ court will not decide the discrepancy and, if such an application is filed, the authority shall consider and decide it by a reasoned speaking order within four weeks of production of a certified copy of the order. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHICH OF THE TWO SAME-MONTH BILLS WAS CORRECT, AND THE AMOUNT PAYABLE.

Merits of the billing discrepancy were left to the Clause 6.5 authority. ¶ 2-3